

Northgate Talent Partners LLC

www.northgatetalent.com

April 29, 2019

Amy Alvarez

General Manager

Howard, Carlson and Tran

Dear Amy:

This letter confirms that Howard, Carlson and Tran has retained Northgate Talent Partners to conduct a search for your General Counsel. I want to put one thing in writing before the terms, because it came up twice in our conversation and it will decide how this goes: the seat you described is not the seat your current job description describes, and if the two are not reconciled in the first three weeks we will spend the back half of the search re-litigating the specification with candidates already in it. We will bring you that reconciliation. You will have to make the call.

The remainder of this letter sets out the assignment, the team, the commercial terms, and the standard provisions under which we work. If it reflects your understanding, please sign and return the enclosed copy.

Scope of the Assignment

We will conduct a retained search for a General Counsel reporting to you, with responsibility for commercial contracting, litigation management, regulatory matters, and the legal support of the firm's growth plan. The assignment is exclusive to Northgate Talent Partners for its duration. We will not present the position to a candidate through any other channel, and you agree that candidates developed by us during this search will be considered through this engagement rather than in parallel with another firm or an internal process running to different rules.

For the term of the assignment and for one year following its completion, we will not solicit any employee of Howard, Carlson and Tran for another client's search. That restriction is real and we honor it without being asked.

The assignment covers one placement. If you elect to hire a second candidate from the slate we develop, that is a separate engagement and we will paper it separately rather than argue about it afterward.

Approach

We will begin with a specification phase: interviews with you and with the executives and outside counsel the General Counsel will work with most closely, followed by a written position specification that you approve before we take the role to market. The specification is the contract with the candidate, and we will not shorten this phase to make an early number look better.

Research follows. We will map the relevant legal talent by market and by company type, identify the seats that produce the profile you need, and develop a longlist we review with you before outreach. Assessment is ours to do first: our team will interview candidates against the approved specification and present only those we would defend in front of your board. You should expect a slate rather than a stack of resumes, and you should expect us to tell you when the slate is thin and why.

Through finalist selection we will manage references, support your interview process, and stay in the middle of the offer. Candidates at this level withdraw for reasons that have nothing to do with the job, and the firm that is still talking to them in week ten is the firm that closes.

The Team

Sandra Fuentes, Principal, leads the assignment and owns the specification and the slate. James Grant, Principal, is your second point of contact and will carry the candidate relationships through to close. Nicole Donovan, Research Associate, will run the market mapping and the candidate research. I am Kelly Chavez, Managing Director; I am accountable to you for this engagement, and if the search drifts you will hear it from me directly rather than from a status report.

Fee and Commencement

The engagement commences May 9, 2019 and is expected to run approximately four months from that date through the acceptance of an offer. Our fee for the assignment is \$62,000, fixed at the outset rather than calculated against the compensation you ultimately agree with the successful candidate. We price this way on purpose: a fee that rises with the offer puts us on the wrong side of the negotiation, and we would rather be useful to you at the table than paid for the outcome.

Fees and Payment

The fee is invoiced in three equal installments: the first upon commencement, the second upon delivery of the candidate slate, and the third upon the successful candidate's acceptance of your offer. Invoices are payable within thirty days of receipt. Reasonable out-of-pocket expenses directly attributable to the search, including candidate travel we arrange at your request, are billed at cost against the same invoice schedule; we will obtain your approval before incurring any single expense above a nominal amount.

Term and Termination

Either party may terminate this engagement on fifteen days' written notice. On termination you owe the installments already earned under the schedule above and any expenses incurred to that point, and nothing further. If the successful candidate leaves the position within twelve months of the start date for reasons other than a change in the role, a reduction in force, or a material change in the terms you offered, we will conduct one replacement search at no additional fee, expenses excepted.

Confidentiality

Each of us will treat the other's confidential information as its own. In practice the weight of this provision falls on us, and it is the provision we take most seriously. Candidates in a search of this kind are employed elsewhere and are taking a real risk by talking to us; we describe them by their current role rather than by name in anything that circulates, and we will ask your organization to observe the same discipline once names reach you. We will not disclose the existence of this search, your identity as our client, or the identity of any candidate to anyone outside the parties without written consent, other than as required by law.

Limitation of Liability

We conduct the assignment with professional care and present candidates against the approved specification, including verification of the credentials and references a search of this kind requires. The hiring decision is yours, and the employment relationship that follows is between you and the candidate. Our aggregate liability arising out of this engagement is limited to the fees actually paid to us under it, and neither party is liable to the other for indirect or consequential losses. Nothing here limits either party's liability for fraud or willful misconduct.

Governing Law

This engagement is governed by the laws of the state in which our principal office is located, without regard to its conflict of laws provisions. Disputes we cannot resolve between ourselves will go to binding arbitration before a single arbitrator in that jurisdiction. This letter is the entire agreement between us on this assignment and supersedes anything discussed before it.

Please sign below and return one copy to Sandra Fuentes, who will schedule the specification interviews within the week. We are glad to be doing this with you.

Kelly Chavez

Managing Director

Date: April 29, 2019

Amy Alvarez

General Manager, Howard, Carlson and Tran

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